CITY OF Armadale

HR CORPORATE PROCEDURES
Working with Children Checks

Date Adopted: **12 January 2007**
Date Amended: **April 2018**
Responsible Officer: **Human Resources Manager**
Authorised: **Chief Executive Officer**
Signed:

1. Purpose and Introduction

This procedure outlines the practices put in place by the City of Armadale, and the commitment made to safeguard children, by providing a screening mechanism for our employees, prospective employees and volunteers in certain categories of work.

Effective from January 2007, the West Australian Government introduced compulsory Working with Children (WWC) Checks for all individuals who work or volunteer in positions that require them to work closely children. This is referred to as 'child-related work' as per the *Working with Children (Criminal Record Checking) Act 2004.*

This procedure outlines which categories of employees and volunteers will be required to obtain a WWC Check and the related steps to follow.

2. Working with Children Check

The Working with Children Check is a compulsory screening strategy which aims to protect children by deterring people from applying to work with children where they have a relevant charge or conviction and by detecting any new relevant charges or convictions.

The WWC Check is valid for three years and is an ongoing collection and assessment of information that is relevant to whether a child may be exposed to a risk of harm should the person engage in child-related work. A WWC Check accesses more criminal record information than a National Police Certificate, including juvenile records, spent convictions and charges that did not result in a conviction. In some circumstances, information relating to charges and/or convictions for overseas offences may also be obtained.

All employees (or prospective employees), contractors, volunteers and unpaid workplace students (over the age of 18), who undertake 'child related' work on more than five days in a calendar year, will be required to obtain the WWC Check. Work is

considered 'child related work' when the **usual duties involve contact with children.**

The Act defines 'contact' as:

a) *any form of physical contact; and*
b) *any form of oral communication, whether face to face, by telephone or otherwise; and*
c) *any form of electronic communication, but does not include contact in the normal course of duties between an employer and an employee or between employees of the same employer.*

A child is a person under 18 years of age. Where there is occasional contact with children or where customers may be children, there is no requirement for the Working with Children Check. The table on page 4 lists the City of Armadale positions requiring incumbents to possess a WWC Check.

2.1 Applying for a WWC Check

Obtain, complete and lodge an *Application for a Working with Children Check* form in person at an authorised Australian Post Outlet. The Department of Communities specifies 20 categories of child related work on the application form. If you are unsure which category applies, please contact the WWC Screening Unit on (08) 6217 8100. Lodging the application will initiate a national check of criminal records, to determine whether an applicant has convictions or certain charges that indicate a child may be at risk. The Working with Children Screening Unit is responsible for the assessment.

A successful Working with Children Check will result in the applicant being issued with an Assessment Notice that will be valid for three years across different types of 'child related work'. An Assessment Notice will be in the form of a Working with Children Card that will bear his/her photograph, signature, Assessment Notice number and expiry date. The Western Australian WWC Card is only valid in Western Australia and the Christmas and Cocos (Keeling) Islands. A WWC Check from another state or territory is not valid in Western Australia.

If a Working with Children Check application is unsuccessful, a Negative Notice will be issued. A Negative Notice means it will be an offence to engage in paid, voluntary or unpaid child-related work. The City (Employer) is also informed that a negative notice has been issued. A Negative Notice to a current WWC Card holder will cancel the card immediately. An Interim Negative Notice may be issued in some cases where a final decision about whether a WWC Card can be issued. Individuals cannot start or continue in child related work if they receive either an Interim Negative Notice or a Negative Notice.

The processing time for applications is approximately three weeks and applications must be signed by an authorised representative from the employer, volunteer organisation or education provider. Authorised representatives from the City who may sign your application are either the Human Resources Officers (for employees), or the volunteer's supervisor (for volunteers). A WWC Check will cost $84 for paid workers and $11 for volunteers, unpaid workers and students on unpaid placement.

Prospective employees will be required to produce or obtain the WWC Check upon commencement and pay for the WWC Check themselves. Employees can commence employment by providing their application receipt, but the letter of appointment will state that employment will further depend on obtaining the WWC Check. Should a Negative Notice be issued, the employment will cease. Employees who already have a current assessment from a previous position or employer do not have to reapply, as long as their WWC Check is current. Existing staff who are required to obtain the WWC Check will receive a reimbursement for their application.

2.2 Renew an existing Working with Children Check

An individual with a current WWC Check (due to expire in less than three months), is able to apply for their renewal online. The WWC Check Screening Unit no longer send reminder letters to card holders, so to receive a reminder email, the card holder will need to register an online account and update their email information. If your WWC Card has expired, then the application process is the same as the original application and is done by filling in the form and lodging it at an authorised Australia Post outlet. A photo will be taken as part of your application, whereas, an online renewal will use your previous photograph for the new WWC Card.

2.3 Replace a lost card

If your WWC Card has been lost, stolen or damaged, you can request a replacement online for $11.00, or contact the WWC Screening Unit who will send you paperwork to lodge at an Australia Post outlet, along with the $11.00 fee.

2.4 Changes in criminal record

Paid employees, volunteers and contractors are further obliged to notify the City as soon as practicable after any change in their criminal record occurs. The City is required to advise the Working with Children Screening Unit as soon as practicable after being notified of a relevant change in an employee's criminal history.

Applicants are subject to ongoing checking and assessment, until a WWC Card expires or is cancelled. Eligibility to continue to hold a WWC Card may be re-assessed if new information relevant to the safety of children is received, for example, a new charge of conviction for a relevant offence.

3. Guidelines related to Checks

WWC checks shall only be accessible to the Chief Executive Officer, Human Resources and the relevant Executive Director and Manager.

Information related to the checks will be stored in secure personnel and volunteer files and will remain confidential.

The need to obtain a check will be stated in the position description and selection criteria and at the interview so that prospective employees are aware of the requirements.

Existing staff applying for advertised vacancies in any of the relevant positions will be required to produce a check prior to their promotion/transfer to the new position. In these instances staff will be required to fund the check themselves.

Managers are responsible for ensuring that checks are completed and updated. Assistance will be provided by Human Resources who may assist with the application and also, will maintain a database to monitor expiry dates and ensure confidential filing of the records.

Agency staff, contractors and work experience students working in positions where checks are required, will need to produce a copy of the document prior to commencement of the duties. Managers are responsible for monitoring that agency staff, contractors and students hold the required check.

As stated above the WWC Check is valid for three years. HR will maintain a database with WWC Checks issued to staff and expiry dates. Staff are responsible for ensuring their WWC cards are renewed as required and shall ensure HR receive a copy of their new card. The City will refund the costs for these applications.

Penalties of up to $60,000 and five years imprisonment apply in relation to offences under the Act.

4. Further information

Further information is available on the following website:

www.workingwithchildren.wa.gov.au

Information is also available from the Human Resources Department.

5. Positions requiring WWC Checks

The table below lists the current City of Armadale paid positions requiring a WWC Check.

Position
Community Development Officer – Youth Engagement
Community Development Officer – Children & Families
Community Development Coordinator
Indigenous Children & Families Officer
Champion Centre Support Officer
Crèche Supervisor
Crèche Assistant
Swim Instructor
Education Officer
Library Clerk (only when incumbent conducts storytime or other child related interactive sessions)
Health & Fitness Instructor (only if involved in children's classes)
Program Instructor (only if involved in children's classes)